

13. *Torres v. Reveles, et al*, Case No. CIVSB2508211
Defendants' Motion to Stay Civil Proceedings
8/21/26, 9:00 a.m., Dept. S-17

The Court would **GRANT** this unopposed motion.

Neither the U.S. Constitution nor the California Constitution requires a stay of civil proceedings pending the outcome of a criminal proceeding, and simultaneous civil and criminal proceedings are unobjectionable unless they result in substantial prejudice to the rights of the parties. (*Avant! Corp. v. Superior Court* (2000) 79 Cal.App.4th 876, 885.)

However, “[h]istorically, courts have devised a number of procedures designed to accommodate the specific circumstances of the case.” (*Avant! Corp. v. Superior Court* (2000) 79 Cal.App.4th 876, 882.) “One accommodation is to stay the civil proceeding until disposition of the related criminal prosecution.” (*Avant!, supra*, 79 Cal.App.4th at p. 882, citing *People v. Coleman* (1975) 13 Cal.3d 867, 885.) Another possibility is to allow the civil defendant to invoke the privilege against self-incrimination, even if doing so may limit the defendant’s ability to put on a defense.” (*Ibid.*) Other accommodations have included conferring an immunity on the party invoking the privilege or precluding a litigant who claims the constitutional privilege against self-incrimination in discovery from waiving the privilege and testifying at trial to matters upon which the privilege had been asserted. Each of these procedural tools is devised based on the circumstances of the particular case. “The alleviation of tension between constitutional rights has been treated as within the province of a court’s discretion in seeking to assure the sound administration of justice.” (*Avant!, supra*, at p. 882, quoting from *People v. Coleman, supra*, at p. 885.)”

In this case, Defendant Perez was arrested and charged in Case No. FSB25000519. He argues that a stay is necessary to preserve his 5th Amendment privilege, as inquiries in this matter necessarily overlap with this wrongful death action.

Importantly, Plaintiff has *not* submitted an opposition to this motion. A failure to oppose a motion may be deemed consent to the granting of the motion. (Rules of Court, rule 8.54(c); also *Giles v. Horn* (2002) 100 Cal.App.4th 206,228 [challenge to judicial notice motion forfeited by failure to file opposition].) Thus, the Court would grant this motion.

14. *Rodriguez v. Ramirez, et al*, Case No. CIVSB2603109
Defendant’s Motion to Strike Portions of the Complaint
7/16/26, 9:00 a.m., Dept. S-17

This matter was continued from its original date of July 16, 2026

Tentative Rulings

The Court would **DENY**.

Case Summary

This is an automobile accident, personal injury case. Plaintiff alleges that he was injured in an automobile accident that was caused by Defendant on July 20, 2025. Plaintiff asserts that Defendant

was negligent, driving at unsafe speeds, and intoxicated at the time of the accident. As such, he filed suit on January 28, 2026, alleging causes for (1) motor vehicle; (2) negligence; and (3) willful misconduct. Relevant here, Plaintiff also included an exemplary damages attachment and prays for punitive damages.

Statement of the Law

A motion to strike can be used to reach defects or objections to pleadings that are not challengeable by demurrer. A motion to strike can be used to attack the entire pleading, or any part thereof. (*Warren v. Atchison, Topeka & Santa Fe Ry. Co.* (1971) 19 Cal.App.3d 24, 40.) The motion can be used to strike out any irrelevant, false, or improper matters inserted in any pleading or may strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., §§ 435-436.) “Irrelevant matter” includes a demand for judgment requesting relief not supported by the allegations or an allegation that is neither pertinent to nor supported by an otherwise sufficient claim. (Code Civ. Proc., § 431.10(b)(2)-(3).)

Analysis

Defendant, here, seeks to strike the allegations and prayer for punitive damages. He asserts that Plaintiff does not allege factual specificity sufficiently to support punitive damages. Defendant argues that referencing his conduct as wanton or willful is insufficient to establish that Defendant was motivated to injure Plaintiff. He largely relies on *Taylor v. Superior Court* (1979) 24 Cal.3d 890, for the proposition that general intoxication does not rise to the level of “despicable conduct” – as required with an allegation of malice – where the allegations lack any aggravating factors such as extreme speed, high blood alcohol content (BAC), or fleeing the scene.

Under Civil Code section 3294, in an action for breach of an obligation not arising out of a contract, the plaintiff may recover punitive damages where it is proven that the defendant is guilty of oppression, fraud, or malice. To establish a conscious disregard for the safety of others as a predicate for punitive damages, a plaintiff must establish that the defendant was aware of the probable dangerous consequences of his actions and that he willfully and deliberately failed to avoid the consequences. (*Taylor, supra*, 24 Cal.3d at pp. 895-896.)

In *Taylor*, our Supreme Court overruled a wealth of prior case law precluding punitive damages against intoxicated drivers. The facts in *Taylor* are instructive that more than conclusory facts must be alleged in seeking punitive damages against a drunk driver: The *Taylor* court stated: “One who wilfully consumes alcoholic beverages to the point of intoxication, knowing that he thereafter must operate a motor vehicle, thereby combining sharply impaired physical and mental faculties with a vehicle capable of great force and speed, reasonably may be held to exhibit a conscious disregard of the safety of others.” (*Id.* at p. 897.) The court also discussed that allowing punitive damages will also serve to deter similar future conduct and also that the severity of the issue of intoxicated driving as illustrated in public reports, which showed the severe threat to public safety posed by intoxicated drivers. (*Id.* at pp. 898-899.)

Although not discussed by the parties, the later case of *Dawes v. Superior Court* (1980) 111 Cal.App.3d 82, demonstrates that more than conclusory facts must be alleged. In *Dawes*, the Court of Appeal issued a peremptory writ of mandate commanding the trial court to vacate its order striking allegations of the

complaint that the driver, while intoxicated, ran a stop sign, zigzagged in and out of traffic at speeds in excess of 65 mph in a 35 mph zone, all with reckless disregard of the probable consequences of said conduct and with reckless disregard of the safety of others. The *Dawes* court found these facts sufficient to establish the defendant's conscious disregard of the safety of others and that the probability of injury to others could reasonably be inferred. The court reasoned that such allegations, since at least 1974, were sufficient to be interpreted as malice under Civil Code section 3294. (*Id.* at pp. 87-88.)

Thus, it is not always the case that driving while intoxicated will support punitive damages. However, such may be a factor to consider in determining whether sufficient facts are alleged. *Taylor* recognized a shift in the court's view that there exists a commonly understood risk of driving while intoxicated. Here, the allegations are not simply that Defendant drove while intoxicated but that he consumed alcohol to the point of intoxication, "knowing full well from the outset that he must thereafter drive a motor vehicle." (Compl., Attch. 1, ¶4.) As stated in *Taylor*, "one who voluntarily commences, and thereafter continues, to consume alcoholic beverages to the point of intoxication, knowing from the outset that he must thereafter operate a motor vehicle demonstrates, in the words of Dean Prosser, 'such a conscious and deliberate disregard of the interests of others that his conduct may be called wilful or wanton.' [Citation.]" (*Taylor, supra*, 24 Cal.3d at p. 899.) In this light, the Court would deny the motion.

17. *Tembrina v. Williams Furnace Co., et al*, Case No. CIVSB2127440
Motion for Preliminary Approval of Class Action Settlement
8/21/26, 1:30 p.m., Dept. S-17

This matter was continued from its original hearing date on June 12, 2026

Tentative Ruling

The Court would **GRANT**.

Preliminary Approval of Class Action Settlements in General

Settlement of a class action requires court approval. (Cal. Rules of Court, rule 3.769.) The moving party must demonstrate that "the settlement is fair, adequate and reasonable." (*Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 126; *Reed v. United Teachers Los Angeles* (2012) 208 Cal.App.4th 322, 337.) The court has "broad discretion in making this determination." (*In re Microsoft I-V Cases* (2006) 135 Cal.App.4th 706, 723.) Relevant factors the court may consider include "the strength of the plaintiffs' case, the risk, the expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction of the class members to the proposed settlement." (*Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801.) This list of factors "is not exhaustive and should be tailored to each case." (*Ibid.*) The court may "engage in balancing and weighing of factors depending on the circumstances of each case." (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 245, overruled on other grounds in *Hernandez v. Restoration Hardware* (2018) 4 Cal.5th 260, 269.)

"Although the court gives regard to what is otherwise a private consensual agreement between the parties, the court must also evaluate the proposed settlement agreement with the purpose of protecting the rights of the absent class members who will be bound by the settlement." (*Wershba*,